

Gagan Deep Sethi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 October 2025 · Writ-C No. 34794 of 2025 · **Writ disposed; MD, KESCO to decide a fresh representation in accordance with law.**

HEADNOTE

A claim to shift a 33 kVA pole under Rule 4.45(A)(d) of the U.P. Electricity Supply Code, 2005 was not decided on merits. The Division Bench disposed of the writ by permitting a fresh representation to the Managing Director, KESCO, to be considered and decided in accordance with law.

FACTUAL SUMMARY

The petitioners sought a mandamus to shift a 33 kVA pole in front of their gate under Rule 4.45(A)(d) of the U.P. Electricity Supply Code, 2005, and to implement Board minutes dated 26 December 2023. They had deposited Rs.23,44,397 on 29 November 2024 for the shifting and said several representations to the Managing Director, KESCO, Kanpur Nagar, had not been attended to. Respondents' counsel invited a direction to consider the grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2002::4.45

shifting of electricity pole

HOLDING

Without advert to the merits of the claim to shift the 33 kVA pole under Rule 4.45(A)(d) of the U.P. Electricity Supply Code, 2005, the writ is disposed of with liberty to file a fresh representation before the Managing Director, KESCO, Kanpur Nagar within one month; that authority shall consider and decide it in accordance with law within two months of receipt. ¶ 5

FLAG order cites r. 4.45(A)(d) of Supply Code 2005

PRINCIPLE TAGS

relegate-to-statutory-remedy A claim to shift a 33 kVA pole under Rule 4.45(A)(d) of the U.P. Electricity Supply Code, 2005 was not decided on merits. The Division Bench disposed of the writ by permitting a fresh representation to the Managing Director, KESCO, to be considered and decided in accordance with law. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 33 KVA POLE MUST BE SHIFTED UNDER RULE 4.45(A)(D) AND WHETHER THE BOARD MINUTES DATED 26.12.2023 MUST BE IMPLEMENTED

Court expressly declined to advert to the merits. ¶ 5